

14. 9:00 AM CASE NUMBER: MSC21-01827

CASE NAME: FROES VS. ROC FUNDING GROUP

***HEARING ON MOTION IN RE: A NEW TRIAL**

FILED BY: ROC FUNDING GROUP, LLC A NEW YORK LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed Defendant ROC Funding Group's Motion for New Trial and Plaintiff Stella Froes' opposition. Counsel may appear at the hearing on this motion via Zoom or in-person. The Court intends to take this matter under submission and to issue a written ruling. The Court orders that the enforcement of Plaintiff's Judgment on the Special Verdict filed on October 15, 2025, is stayed pending a ruling on Defendant's motion.

15. 9:00 AM CASE NUMBER: MSL20-06032

CASE NAME: ROMON CALHOUN VS. RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

***HEARING ON MOTION IN RE: MOTION FOR ORDER TO ANSWER DEPO QUESTIONS AND PRODUCE DOCS FILE BY DEF ON 09/04/2025**

FILED BY: RELIANT PROPERTY MANAGEMENT, INC. (PREVIOUSLY RELIANT PROPERTY MANAGEMENT, LLC)

TENTATIVE RULING:

Summary

Defendants' Motion for Order Compelling Plaintiff Romon Calhoun ("Plaintiff") to Provide Answers to Deposition Questions for production of documents, and for sanctions, is **granted** as set forth herein.

Background

This is a limited jurisdiction case filed on December 17, 2020 wherein Plaintiff filed causes of action against Defendants for breach of quiet enjoyment, retaliation, constructive eviction, breach of contract and for a return of his security deposit related to the real property located at 1231 Willow Ave., Hercules, CA ("Subject Property"). Defendants are the landlords, property owners or property managers of the Subject Property.

Defendants claim that Plaintiff refused to answer questions during his deposition on July 22, 2025 and refused to produce documents requested without substantial justification relating to his claims related to Defendant's breach of his quiet enjoyment, constructive eviction and related claims. As an example, during his deposition, Plaintiff refused to answer questions, including, but not limited to (a) his current residence after residing at the Willow Ave. address; (b) whether he is living in an apartment; (c) whether he was leasing an apartment, and the identity of persons who have knowledge of this case. These questions are relevant and would lead to the discovery of admissible evidence. Plaintiff also refused prepare responses to Defendant's Request for Production of Documents, Nos. 1-26, without substantial justification. The documents requested include documents that support his claims against Defendants for constructive eviction and .

On September 4, 2025, Defendants Reliant Property Management, Inc., Reliant-East Bay, LP, and Rainbow Housing Assistance Corporation ("Defendants") filed their Motion to Compel Plaintiff to

answer deposition questions and to produce documents. The Motion was supported by a Memorandum of Points and Authorities, Declaration of Craig Nevin, Esq., a separate statement and a Proposed Order. The Motion seeks sanctions in the amount of \$6,019.05. Service was made on September 4, 2025.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is December 4, 2025. The Court finds that no timely opposition was filed by Plaintiff.

Analyses

A. Plaintiff's Status as a Self-Represented Litigant

The Court is cognizant that Plaintiff is proceeding in *propria persona*. However, the law is clear that a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Consequently, self-represented litigants, like their represented counterparts, are bound by the procedural rules governing civil litigation. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 (stating that "mere self-representation is not a ground for exceptionally lenient treatment" and procedural rules apply equally); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (holding self-represented parties to the "same 'restrictive procedural rules as an attorney'").

While self-represented litigants are not entitled to special treatment, *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523, trial courts are mindful of their potential lack of legal sophistication. As noted in *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements." The Court has a duty to ensure such litigants are not inadvertently misled. In the present case, the record is devoid of any evidence that Plaintiff was misled by either the Court or Defendant.

Plaintiff's Failure to Oppose the Motion

California Rules of Court, Rule 8.54(c) provides that "A failure to oppose a motion may be deemed a consent to the granting of the motion." This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is "well-within" the court's discretion to deem such inaction "tantamount to a concession that its position in the litigation was not substantially justified." *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785.

Applied to the present matter, the Court finds that Plaintiff's failure to file any opposition to the Motion to Compel Deposition Answers, for Production of Documents and for Sanctions is deemed a consent to the granting of the relief sought by Defendants.

Code of Civil Procedure § 2025.480(a) states, “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Cal. Code of Civ. Proc. § 2025.480(j) also requires this court to impose monetary sanctions against an person who unsuccessfully opposes a motion to compel an answer or production, unless the court finds that the person acted with substantial justification. Here, the Court finds that Plaintiff failed to act with substantial justification in refusing to answer relevant questions and producing documents relevant to his claims. Accordingly, there is good cause to impose sanctions against Plaintiff.

Ruling

Good cause appearing, the Court therefore **grants** Defendants’ Motion in its entirety. Plaintiff Romon Calhoun is ordered to attend deposition and to answer the questions and produce documents identified in Defendants’ Motion no later than ten (10) days from the date of the order. It is further ordered that Plaintiff Romon shall pay Defendants sanctions in the amount of \$6,019.05 within ten (10) days from the date of this order.

Note: The Court’s tentative ruling for No. 1, above, is to dismiss this case with prejudice. If the tentative ruling for No. 1 is not contested, or if it is adopted, the ruling on this matter is as follows: This motion is rendered moot as a result of the dismissal of this case pursuant to Cal. Code of Civ. Proc. § 583.310

Defendant shall prepare a proposed order and judgment conforming to this ruling and shall e-file it with the Court no later than ten (10) days from the date of the hearing.

16. 9:00 AM CASE NUMBER: N25-2210
CASE NAME: KARAN PUNJABI VS. DEPARTMENT OF MOTOR VEHICLES OF THE STATE OF CALIFORNIA
HEARING ON PETITION IN RE: PETITION FOR WRIT OF ADMINISTRATIVE MANDAMUS
FILED BY:

TENTATIVE RULING:

Petitioner Karan Ravi Punjabi’s Petition for Writ of Administrative Mandamus filed on October 24, 2025 and supplemented on November 20, 2025 is unopposed by Respondent California Department of Motor Vehicles, and is **granted**. Petitioner shall submit a proposed order granting the Petition for Writ of Administrative Mandamus and other relief requested no later than ten (10) days from the date of this ruling.